

## 25LBCV01542 25LBCV01542

County: los-angeles

Division: Civil Law and Motion

Department: S27

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Case Number: 25LBCV01542 Hearing Date: August 6, 2026 Dept: S27

1.

### Background Facts

Plaintiffs, Alfredo and Maria Fernandez filed this action against Defendants, City of Long Beach and Long Beach Public Transportation Company for damages arising out of an attack that occurred on a public bus in view of the bus driver.

2.

### Motion for Judgment on the Pleadings

#### a. Pre-Filing Requirements

LBTC moves for judgment on the pleadings, contending Plaintiffs did not file timely government tort claims.

Plaintiffs, in opposition, contend they served timely claims and, in any event, LBTC has waived any right to assert lack of compliance at this time.

LBTC seeks judicial notice of the plaintiffs' tort claims and of the notice of rejection of claim. Pursuant to *Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 376, the RJN is granted.

The parties agree that claims were due on or before six months after 5/22/24, which fell on or around 11/22/24.

The tort claims and related evidence are confusing. The claims include a cover letter from Plaintiffs' attorney dated 11/15/24. The claims themselves include Plaintiffs' signatures on the date 12/06/24. LBTC's responsible person declares he

received the claims on 12/06/24.

Plaintiffs' attorney, with the opposition papers, submits a declaration explaining that he signed the claims on 11/20/24 and deposited them in certified mail that same day; the receipt shows arrival on 11/22/24, the last day for timely service of the claims.

Plaintiffs' attorney explains that, after LBTC received the claims, its claims administrator asked Plaintiffs' attorney to have the individual plaintiffs sign the claims, which he then prepared for signature and re-served.

Cal Gov Code §910.2 provides that the claim "shall be signed by the claimant or some person on his behalf." The Court finds it cannot determine, from the face of the complaint and judicially noticeable documents, that the claims were not timely submitted. The motion for judgment on the pleadings directed at the entire complaint on the ground that Plaintiffs failed to submit timely government tort claims is therefore denied.

The Court declines to rule on Plaintiffs' remaining arguments re: waiver and/or Plaintiffs' request for judicial notice, as doing so is not necessary to a resolution of the merits of the motion.

b.

Negligence,  
NIED, and Negligence Per Se

LBTC moves for judgment on the pleadings on the negligence per se and NIED causes of action, contending they are duplicative of the negligence cause of action. Negligence per se is technically just an evidentiary doctrine and does not state an independent tort. See *Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1285-1286.

In *Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 984-985, the Court held that there is no separate tort for NIED; it is merely the tort of negligence.

It is, however, common to plead negligence per se and NIED separately, and is similar to pleading three "counts" of negligence. At trial,

Plaintiffs will, of course, be limited to a single recovery. At the pleading stage, however, the Court finds the duplicative nature of the claims is not problematic, and the motion on this ground is denied.

c. Conclusion

The motion for judgment on the pleadings is denied.

LBCT is ordered to give notice.